

Sri T Shreedhar vs Smt C Rajeshwari on 27 April, 2017

Author: A.S.Bopanna

Bench: A S Bopanna

1

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 27TH DAY OF APRIL, 2017

BEFORE

THE HON'BLE MR. JUSTICE A S BOPANNA

WRIT PETITION No.8978/2016 (GM-FC)

BETWEEN:

SRI T SHREEDHAR
AGED ABOUT 40 YEARS,
S/O LATE THIRUMALAI AH,
R/AT OLD NO. 100,
NEW NO.9, 2ND FLOOR,
6TH MAIN, MEENAKSHI NAGAR,
KAMAKSHIPALYA NEW EXTENSION,
BASAVESHWARANAGAR,
BANGALORE - 560 079.

... PETITIONER

(BY SRI. SHRISHAILA D, ADV.)

AND:

SMT. C RAJESHWARI
AGED ABOUT 40 YEARS,
W/O SRI T SRIDHARA,
R/AT NO. 526,
MEENAKSHINAGAR,
KAMAKSHIPALYA NEW EXTN,
BASAVESHWARANAGAR,
BANGALORE - 560 079.

... RESPONDENT

THIS PETITION IS FILED UNDER ARTICLES 226 & 227 OF
THE CONSTITUTION OF INDIA, WITH A PRAYER TO QUASH
THE ORDER DATED 02.12.2015 MADE BY THE LEARNED
1ST ADDL. FAMILY JUDGE AT BANGALORE ON I.A.VII,

IN M.C.1785/2013 ON THE FILE, MARKED AT ANNEX-A.

2

THIS PETITION COMING ON FOR PRELIMINARY
HEARING IN 'B' GROUP, THIS DAY, THE COURT MADE THE
FOLLOWING:

ORDER

The petitioner is before this Court assailing the order dated 02.12.2015 passed on IA No.7 in M.C.No.1785/2013.

2. The petitioner herein is the husband of the respondent. Due to certain disputes in their marital life, they are residing separately. The petitioner herein has instituted a petition under Section 13 (1)(ia) of the Hindu Marriage Act ('the Act' for short) in M.C.No.1785/2013 seeking dissolution of marriage. In the pending proceedings the respondent herein has filed an application under Section 24 of the Act in IA No.7 seeking payment of maintenance at Rs.30,000/- per month and the litigation expenses of Rs.50,000/-. The application was opposed by the petitioner. The Court below by the order impugned dated 02.12.2015 has directed the payment of Rs.5,000/- per month towards the maintenance. The said order is assailed by the petitioner in this petition.

3. Learned counsel for the petitioner while assailing the said order would contend that the differences in the married life has cropped up due to the attitude of the respondent and it is in that circumstance the petition came to be filed before the Court below. It is contended that in such circumstance when there is no justification for grant of maintenance, the consideration could not have been made. Even with regard to the quantum of maintenance as awarded by the Court below, it is contended that the income of the petitioner has not been determined and as such the quantum of maintenance as awarded is not justified. Learned counsel has also relied on the decision of this Court in the case of Smt.Padmavathi and others vs. C.Lakshminarayana (AIR 2002 Kar 424).

4. In the light of the contentions, having perused the petition papers, at the outset a reference to the decision cited above would indicate that all aspects relating to the consideration of an application under Section 24 of the Act has been made in the said case and the manner of determination of the quantum is also decided. It is also held therein that the maintenance cannot be refused merely on the ground that the financial condition of the husband is not good. Insofar as the direction issued therein to hold summary enquiry before arriving at the conclusion is in a circumstance where higher quantum of amount was awarded as maintenance. At the outset, it is seen that the maintenance as awarded in the instant case is in a sum of Rs.5,000/- per month. To the said extent the contention no doubt put forth by the respondent was that the petitioner was running the business of Swathya Food Products at Dr.Rajkumar Road, Bengaluru. It is no doubt true that though it was contended that the petitioner had the income of Rs.1,50,000/- per month, no materials were produced before the Court below. In fact the Court below itself has arrived at the conclusion that such contention relating to the income is improbable but in any event taking into consideration the nature of the business, has arrived at the conclusion that the maintenance of Rs.5,000/- per month is to be provided.

5. In a matter of the present nature, where the respondent has not established the income and only the avocation had been referred to and in that light when the avocation was not in dispute, if the petitioner had any lesser income than what was contended by the respondent, it was open for the petitioner herein to produce such documents before the Court below to indicate the actual income.

6. In that light keeping in view the fact that there is no dispute with regard to the relationship and even though there are allegations and counter allegations with regard to the differences that have cropped up amongst themselves, those are aspects which would arise for consideration of the main matter. Until such decision is taken by the Court below, in any event the obligation to maintain the respondent cannot be shirked by the petitioner. If that aspect is kept in view the sum of Rs.5,000/- per month awarded to the respondent wife especially in a place like Bengaluru in any event cannot be considered as excessive so as to call for interference.

The petition being devoid of merit stands disposed of.

Sd/-

JUDGE akc/bms